

**LANDSCAPING****LAWN CARE****SNOW REMOVAL**

COMMERCIAL SNOW REMOVAL TERMS AND CONDITIONS

Unless otherwise defined herein, all capitalized terms used herein shall have those meanings ascribed to such terms in the Agreement to which these terms and conditions are attached.

PROVISION OF SNOW REMOVAL SERVICES

1. The specific provision of Snow Removal ("Clearing") Services and associated fees are outlined in each individual contract. Basic Service Provision is Snow Clearing after 5 cm (2") accumulation of snow fall in a 24-hour period.
2. Mow and Snow will provide the Snow Clearing once on each day between November 1, 2026 and April 30, 2027 on which the snowfall accumulation on the ground accumulates to 5 cm or more. The Client acknowledges that if snow again accumulates over 5 cm after the Provision of Services on the same day, Mow and Snow will return to provide the Services the next following day and is not required to return that same day.
3. The Client understands that snow accumulations may vary throughout the area, and that accumulations in one area are not necessarily indicative of the accumulations at the site.
4. The Client understands that Snow Clearing is completed on a route which is created with consideration to each Client's needs as well as priority sequencing requirements due to government regulations, zoning, bylaws, equipment needs at a client's property, and logical routing orders due to physical locations. Mow and Snow endeavors to meet Client's request for sequence on the route, however the Client understands specific requests for timing of services provided may not always be possible due all Clients routing, and equipment needs, bylaws, zoning, and physical location of the property being services.
5. The Client understands that Mow and Snow endeavors to provide consistent services at a consistent time; however due to heavy or light snowfalls, equipment failure, or other unforeseen circumstances there may be variation in times of Service Provision (i.e. not at a consistent time each day).
6. The Client understands that Snow Clearing is completed with trucks and/or heavy equipment fitted with plow or blades. The snow is pushed to, then piled at a designated area on your site. If the snow pile area exceeds a safe piling height, Mow and Snow and/or the Client may request the removal of this snow to a designated dump site for an additional fee.
7. The Client understands that Snow Clearing will not instantly and completely remove all ice and/or snow from the site.
8. The Client understands that work requested to be completed outside the scope of the attached contract will be charged at an agreed upon price. Examples include but are not limited to: revisiting the site to clear drifting snow, accumulation of snow due to roof shed, municipal or other plowed snow, additional snowfall after Provision of Service, or development of ice due to freezing rain, sleet or snow compaction. In the event of continual snowfall throughout a day, the Client may initiate a Request for Additional Service Provision, and Mow & Snow will endeavor to meet this request, either after the snow plow route has been completed, when any snow plow operator is near the site, or the next service day.

ACCESS TO THE SITE

9. The Client hereby represents and warrants to Mow and Snow that the Client has the authority to enter into this Agreement and is the registered and beneficial owner of the lands comprising the site where the Services are to be provided (the "Site") and/or has obtained all licenses, permits and consents required for Mow and Snow to carry out the Services at the Site.
10. The Client will ensure that Mow & Snow has access to the Site at all times as reasonably necessary to carry out the Services. Mow and Snow will not be responsible to remove vehicles or objects located at the Site but will instead remove the snow around these objects to the extent reasonably possible. Mow and Snow will not make multiple visits to the Site due to placement of vehicles or other objects.

**LANDSCAPING****LAWN CARE****SNOW REMOVAL****DELAYS**

11. Mow and Snow is not responsible for any delays in performance of the Services caused by factors outside Mow and Snow's control, including, without limitation, delays caused by equipment failure, weather, subcontractors, governmental requirements, or shutdowns.

RESPONSIBILITY FOR DAMAGE

12. The Client acknowledges that they are responsible for any damage to obstacles that protrude from the surface of the pavement. This includes utilities such as water shut offs, electrical boxes, sewer vents and clean outs and any other obstacles on or within 25 cm of the pavement to be Cleared. The Client understands that snow plowing, by its very nature, involves pushing a steel blade over the surface of the pavement. If your pavement is defective, deteriorated, weakened, frost heaved, or, was installed improperly, the results of this previous damage are more likely to appear after Snow Clearing. Mow and Snow is not responsible for any damages to pavement or property unless Mow and Snow has been deemed negligent.
13. It is the Client's responsibility to remove any objects or items left on the Site which may be covered by snow. Mow and Snow will not be responsible to remove any items left on the Site and will also not be responsible for damage caused to any such items which may not be fully visible after snowfall, or after snow has been piled on or nearby.

LIMITATION OF LIABILITY AND INDEMNITY

14. The Client acknowledges that Snow Clearing/Plowing at a particular location may not clear the area to "bare pavement" and that slippery conditions may continue to prevail even after plowing/clearing, ice control, or sand application services have occurred. As well, smaller snowfalls that do not meet the 5 cm threshold for deployment may become packed, slippery, and difficult to remove with snow clearing equipment. The Client understands that Mow and Snow assumes no liability for this naturally occurring condition. The Client is aware that weather conditions may change rapidly and without notice and that Mow & Snow assumes no liability for such changes in conditions. During operations and after completion of operations, the Client agrees to indemnify and save harmless Mow and Snow, and its employees, against any and all claims by the Client, its employees or third parties, their heirs, executors, administrators, successors, surrogates, or assignees, arising on account of death or injuries to person or damage to property, arising out of use of, or traveling at, or onto, the Property, whether or not such claim, damage, injury, or death results from negligence of Client, Mow and Snow, or others. Client shall defend all suits and claims arising from or incidental to the work under the Agreement, without expense or annoyance to Mow and Snow and its employees.
15. The Client further acknowledges that delays can occur, and that Mow and Snow may not always be able to remove snow in a timely manner or at all. Mow and Snow is not responsible and assumes no liability for any injury or damage caused due to a failure to provide the Services in a timely manner or at all.
16. The Client agrees that if Mow and Snow is found to be liable for any reason, including its own negligence, in relation to the provision of Services under this Agreement, Mow and Snow's liability shall not under any circumstances exceed and shall be expressly limited to the Fee payable hereunder and the Client is solely responsible for any additional liability which may be incurred and the Client represents that it is fully and adequately insured for such additional liability.
17. Notwithstanding the foregoing or any other term of this Agreement, the Client hereby releases and agrees to indemnify and save harmless Mow and Snow, and its subcontractors, agents, and employees, from all claims and liability relating to the Services being provided under this Agreement, including without limitation, any liability arising from or related to what may be considered negligence on the part of Mow and Snow or any of its subcontractors, agents, or employees.
18. Unless the written contract specifies when and where salt or sand is to be applied, the Client is responsible for determining when and where salt or sand will be applied. Mow and Snow will not apply salt or sand at its discretion unless it determines that a safety hazard exists.



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INSURANCE

19. The Client shall obtain its own policy of insurance for protection of property and potential liability at the Site and such other policies as deemed appropriate by the Client to cover the risks assumed by the Client pursuant to this Agreement.

TERMINATION

20. Unless otherwise agreed, this Agreement shall terminate on April 30, 2027, except that paragraphs 13 through 18 shall survive termination.

GENERAL PROVISIONS

- 21.** Any notice, direction or other instrument required or permitted to be given under this Agreement will be in via email or in writing and may be given by mailing the same postage prepaid or delivering the same to the addresses listed above for each party or to such other address as a party may specify by written notice.
- 22.** This Agreement will be construed and enforced in accordance with, and the rights of the parties shall be governed by, the laws of British Columbia.
- 23.** Each of the parties hereto attorn to the jurisdiction of the Supreme Court of British Columbia.
- 24.** This Agreement may not be assigned by any party without the prior written consent of the other party, which consent may be arbitrarily withheld.
- 25.** This Agreement ensures to the benefit of and is binding upon the parties and their respective successors and permitted assigns.
- 26.** No modification of or amendment to this Agreement will be valid or binding unless set forth in writing and duly executed by both of the parties and no waiver of any breach of any term or provision of this Agreement will be effective or binding unless made in writing and signed by the party purporting to give the same, and unless otherwise provided, will be limited to the specific breach waived.
- 27.** The Client agrees that physical or electronic signatures are not required to form a binding contract. Confirmation of services, authorization of work, payment of invoices, or the automatic renewal or continued use of Mow and Snow's services constitutes full and unconditional acceptance of all terms and conditions set forth in this Agreement.
- 28.** The parties agree that this Agreement constitutes the entire agreement between the parties hereby.